| STANDARD OPERATING PROCEDURE | | | A-5500 | |
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| | SARPY COUNTY<br>SHERIFF'S OFFICE<br>PAPILLION * NEBRASKA<br>**GREG LONDON**<br>**SHERIFF** | DATE ISSUED<br>04/01/07 | DATE REVISED<br>**03/20/23** | DATE REVIEWED<br>02/02/25 |
| | | APPROVED:<br>*GREG LONDON* | | |
| CHAPTER TITLE<br>ADMINISTRATION | RESOURCES | | | |
| SUBJECT<br>RELEASE OF INFORMATION/BACKGROUND CHECKS | | CROSS REFERENCE | | |

## I. Purpose:

The purpose of this policy is to establish the procedures for providing reports and completing background checks when requested by the public.

## II. Policy:

The Sarpy County Sheriff's Office, as a government agency, shall provide information to the public when requested. The Sheriff's Office shall provide information to a specific individual regarding his or her arrest/traffic offense history in Sarpy County. The Sheriff's Office shall also provide state accident reports and verification of loss reports to the public when requested. The determination regarding the release of any additional reports or information must be made by a sworn member of the Administration Division. The Sheriff's Office shall not release any reports regarding pending criminal investigations. Individuals requesting reports regarding present or past criminal investigations and/or prosecutions shall be directed to the Sarpy County Attorney's Office.

## III. Procedures:

**A. State Accident Reports:** Accident reports completed by the Sheriff's Office shall be available to the parties involved and their insurance companies or attorneys. When an accident report is requested, the Support Staff-Records Unit shall complete the following:

**1.** The support staff employee shall ensure that the individual requesting the report is either a party involved in the accident or a party's insurance company or attorney.

**2.** The support staff employee shall obtain the report fee and provide the individual a receipt.

**3.** The support staff employee shall locate the appropriate report and provide the individual with a copy. The driver's license number and date of birth shall be redacted.

**4.** If the individual requests photographs of an accident scene, the support staff employee shall notify an Evidence/Property Technician with the specific request. Photographs shall only be released with a subpoena.

**5.** The Evidence/Property Technician will make copies of the photographs and notify the Records Unit. The Records Unit shall notify the requesting individual that the photographs are ready.

**6.** The support staff employee shall obtain the photograph fee for each photograph provided and shall provide the individual with a receipt.

**B.** **Verification of Loss Reports:** Loss reports (e.g., criminal mischief, theft, etc.) completed by the Sheriff's Office shall be available to the parties involved and their insurance companies or attorneys. When a loss report is requested, the Support Staff-Records Unit shall complete the following:

**1.** The support staff employee shall ensure that the individual requesting the report is either the victim or victim's insurance company or attorney.

**2.** The support staff employee shall obtain the report fee and provide the individual a receipt.

**3.** The support staff employee shall locate the appropriate report on the computer and print out a copy of the lost or damaged property portion of the report only. Victim, suspect and witness information shall not be provided. Narratives shall also not be provided.

**C.** **Additional Information Requests:** An individual requesting a copy of a report or information regarding a report other than those listed above shall be directed to the Administrative Support Records Clerk or an administrative commander. Subpoenas related to additional request shall be received and sent to the County Attorney's Office for review.

**1.** If the request is regarding a pending or completed prosecution, the individual shall be directed to the County Attorney's Office.

**2.** If the request is regarding an information report or a report closed without prosecution, the individual may be provided with a report "cover sheet" listing the report number, the date and time of the incident, and the location of the incident. Victim, suspect and witness information shall not be

provided. Narratives shall also not be provided, unless approved by Command Staff.

**3.** Only those individuals who are the reporting party or victim may be provided with a report "cover sheet."

**4.** The report "cover sheet" shall be provided to the support staff employee who shall obtain the report fee and provide the individual a receipt prior to providing the "cover sheet."

**D.** **Background Checks:** The Sheriff's Office shall provide Sarpy County arrest/traffic violation records for an individual when requested by that individual.

**1.** Any individual may request his or her arrest/traffic violation record by completing an Authorization for Release of Criminal Records form. This form must be notarized, or it must be signed at the Sheriff's Office by the individual for whom the records are regarding.

**2.** Individuals shall be advised that information obtained from the Sheriff's Office only concerns Sheriff's Office arrests and citations received by the individual ~~in~~ through Sarpy County (e.g., Bellevue PD, LaVista PD, Papillion PD) and do not reflect arrests in other jurisdictions nor do they reflect dispositions (e.g., found guilty, dismissed, etc.). Dispositions for Sarpy County cases may be obtained from the Sarpy County Attorney's Office.

**3.** The Background Check fee shall be obtained by the Sheriff's Office receptionist and a receipt shall be issued.

**4.** The Authorization form shall be forwarded to the Administrative Support Backgrounds.

**5.** Administrative Support Backgrounds shall examine the individual's Sarpy County record in LRMS, ProPhoenix, and NCJIS and shall complete a Background Check form. If the background check is for an adoption, the Background Check form shall be notarized.

**6.** Administrative Support Backgrounds shall mail the completed Background Check form to the individual requesting the background check or notify the individual that the form may be picked up at the Sheriff's Office.